CITY OF OPA-LOCKA

"The Great City"

CLERK'S ACTION SUMMARY MINUTES
FIRST BUDGET HEARING
Wednesday, September 11, 2019
5:01 P.M.
Sherbondy Village Auditorium
215 Perviz Avenue
Opa-locka, FL 33054

1. CALL TO ORDER:

Mayor Matthew Pigatt called the meeting to order at 5:01 p.m. on Wednesday, September 11, 2019 in the Auditorium at Sherbondy Village, 215 President Barack Obama (Perviz) Avenue, Opa-locka, Florida.

2. ROLL CALL:

The following members of the City Commission were present: Mayor Matthew Pigatt, Vice Mayor Chris Davis, and Commissioner Joseph L. Kelley. Also in attendance were: Acting City Manager Newall Daughtrey, City Attorney Burnadette Norris-Weeks, and City Clerk Joanna Flores. Commissioner Alvin Burke arrived at 5:11 p.m. and Commissioner Sherelean Bass arrived at 5:14 p.m.

3. INVOCATION:

The invocation was delivered by Commissioner Joseph L. Kelley.

4. PLEDGE OF ALLEGIANCE:

The Pledge of Allegiance was recited in unison.

5. FIRST READING ORDINANCES/PUBLIC HEARINGS:

a) AN ORDINANCE OF THE CITY COMMISSION OF THE CITY OF OPA-LOCKA, FLORIDA, ADOPTING A FINAL MILLAGE RATE PURSUANT TO SECTION 200.065, FLORIDA STATUTES, FOR FISCAL YEAR 2019-2020, COMMENCING OCTOBER 1, 2019 THROUGH SEPTEMBER 30, 2020; SETTING FORTH PUBLIC HEARING DATES; PROVIDING FOR ADOPTION OF REPRESENTATIONS; PROVIDING FOR REPEAL OF ALL PRIOR ORDINANCES IN CONFLICT; PROVIDING FOR SEVERABILITY; PROVIDING FOR AN EFFECTIVE DATE. *Sponsored by City Manager*

The above ordinance was read by Attorney Norris-Weeks.

Mayor Pigatt opened the floor for a public hearing. There being no persons to speak on the public hearing, the public hearing was closed.

It was moved by Commissioner Kelley, seconded by Vice Mayor Davis for discussion.

Commissioner Kelley asked if the 9.8 millage rate is correct.

Acting City Manager Daughtrey said, "Yes".

Vice Mayor Davis said he is concerned that the millage rate is so high. The City is the poorest in the area and he hopes in the future it will go down.

Mayor Pigatt concurred with the vice mayor.

There being no further discussion, the motion on the ordinance passed by a 4-0 vote.

Vice Mayor Davis	Yes
Commissioner Burke	Yes
Commissioner Bass	Not Present
Commissioner Kelley	Yes
Mayor Pigatt	Yes

b) AN ORDINANCE OF THE CITY COMMISSION OF THE CITY OF OPA-LOCKA, FLORIDA, APPROVING AND ADOPTING THE CITY'S GENERAL FUND BUDGET FOR THE FISCAL YEAR 2019-2020, COMMENCING OCTOBER 1, 2019 THROUGH SEPTEMBER 30, 2020; PROVIDING FOR THE EXPENDITURE OF FUNDS ESTABLISHED BY THE BUDGET; AUTHORIZING THE CITY MANAGER TO TAKE CERTAIN ACTIONS; PROVIDING FOR APPROPRIATION OF ALL BUDGET EXPENDITURES; PROVIDING FOR FEES CONSISTENT WITH APPROPRIATION AND AMENDMENT; PROVIDING FOR INCORPORATION OF RECITALS; PROVIDING FOR CONFLICT AND REPEALER; PROVIDING FOR SEVERABILITY; PROVIDING FOR AN EFFECTIVE DATE. *Sponsored by City Manager*

The above ordinance was read by Attorney Norris-Weeks.

Mayor Pigatt opened the floor for a public hearing. There being no persons to speak on the public hearing, the public hearing was closed.

It was moved by Commissioner Burke, seconded by Vice Mayor Davis for discussion.

Commissioner Kelley asked the manager to clarify the projections in the budget that the state did not allow and moved in to the reserves. He asked if the funds will be available in the future.

Acting City Manager Daughtrey said the state requires the City to give them specific documentation for each request that is made. The City did not comply and asked the state to provide the specifics what they are requesting. Once the information is provided, the City will come into compliance.

Vice Mayor Davis said Section 8 refers to a Finance Director and the city currently does not have a Finance Director. He asked the manager if this was an error and needs to be amended or is there a designee.

Acting City Manager Daughtrey said he is the designee.

Mayor Pigatt asked the manager what steps are being taken to ensure the stability of the City's finances.

Acting City Manager Daughtrey said a written response to all of the questions raised by the state was provided to each of the commissioners. Any changes being made needs to be done prior to second reading on September 25th. The response was also sent to the state for their approval.

Mayor Pigatt asked the manager how much of the funds were put in reserves as a result of a lack of documentation.

Acting City Manager Daughtrey said that the state did not cut anything out of the budget. They just said they did not feel comfortable with the way the funds were being spent.

Mayor Pigatt said the City needs to account for how it is spending the funding and this needs to be done by providing documentation to justify the spending.

There being no further discussion, the motion on the ordinance passed by a 5-0 vote.

Vice Mayor Davis	Yes
Commissioner Burke	Yes
Commissioner Bass	Yes
Commissioner Kelley	Yes
Mayor Pigatt	Yes

c) AN ORDINANCE OF THE CITY COMMISSION OF THE CITY OF OPA-LOCKA, FLORIDA, APPROVING AND ADOPTING THE CITY'S PROPRIETARY AND SPECIAL REVENUE FUND BUDGET FOR THE FISCAL YEAR 2019-2020, COMMENCING OCTOBER 1, 2019 THROUGH SEPTEMBER 30, 2020; PROVIDING FOR THE EXPENDITURE OF FUNDS ESTABLISHED BY THE BUDGET; AUTHORIZING THE CITY MANAGER TO TAKE CERTAIN ACTIONS; PROVIDING FOR APPROPRIATION OF ALL BUDGET EXPENDITURES; PROVIDING FOR FEES CONSISTENT WITH APPROPRIATION AND AMENDMENT; PROVIDING FOR INCORPORATION OF RECITALS; PROVIDING FOR REPEAL OF ALL ORDINANCES IN CONFLICT; PROVIDING FOR SEVERABILITY; PROVIDING FOR AN EFFECTIVE DATE. *Sponsored by City Manager*

The above ordinance was read by Attorney Norris-Weeks.

Mayor Pigatt opened the floor for a public hearing.

Virginia Cook, 3114 NW 204th Lane, Miami Gardens, FL, said she was told to come with her complaint about the drainage problem so that it can be added to the budget for the upcoming fiscal year. She said she has been before the commission several times and also spoke with Mr. Austin and met with Commissioner Kelley regarding this. She knows it is costly, but hopes it will be included in the budget because when it rains, it is terrible in front of her church and no one can go into the building.

Henrietta Harrison, 167 NW 45th Street, Miami, FL, said she agrees with the previous person and it is becoming harder and harder to get into the church; it is deterring people from coming to church. Also she is concerned with the health issues this can cause. She is a retired nurse and believes it will cause respiratory issues for those that live in the community.

There being no further persons to speak on the public hearing, the public hearing was closed.

It was moved by Commissioner Kelley, seconded by Commissioner Burke for discussion.

Commissioner Kelley asked the manager how the City can minimize the water in the meantime while looking for funding sources to correct the problem.

Acting City Manager Daughtrey asked the Public Works Director to come before the commission and explain what the City intends to do about the ongoing issue.

Public Works Director Airia Austin came before the commission and stated that right now there is a standing schedule of areas that are addressed after each rain fall. The whole situation cannot be addressed because there is no money in the budget. The recent legislation that was passed declared a flooding

emergency so that the City can seek additional funding to address the flooding issues around the City. In the short term, it is being addressed by vacuuming out the standing water according to the schedule.

Mayor Pigatt thanked the oversight board for their efforts in getting the City where it is today. He said the roads and streets are a high priority for the commission, but it will take time.

There being no further discussion, the motion on the ordinance passed by a 5-0 vote.

Vice Mayor Davis	Yes
Commissioner Burke	Yes
Commissioner Bass	Yes
Commissioner Kelley	Yes
Mayor Pigatt	Yes

7. ADJOURNMENT:

There being no further business to come before the Commission, it was moved by Commissioner Burke, seconded by Commissioner Kelley to adjourn the meeting at 5:45 p.m.

MAYOR

ATTEST:

CITY CLERK